

23STCV05240 23STCV05240

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-20

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Because this action and the related one did not resolve at the mandatory settlement conference conducted by Judge Wendy Chang on July 17, 2026, we will now proceed to a jury trial on this action. (The evidence bearing on the related action will be adduced and heard at trial, but the Court, not the jury, will decide that action.)

Before the trial can begin, however, there is still a fair amount of work to be done.

First, as to the jury instructions, there are no instructions on the cross-claim for breach of fiduciary duty. Counsel for Defendants needs to prepare those instructions. There also are no instructions bearing on punitive damages. This void includes CACI 201 on clear and convincing evidence and CACI instructions on entitlement to punitive damages against individuals and entities. Finally, it is the Court's recollection that Plaintiff's counsel was going to submit the CACI 100 series instructions.

In addition to the work on jury instructions, a verdict form needs to be prepared and submitted to the Court. A check of the docket reveals that no verdict form ever was filed. The Court will review the trial binder on the morning of July 20 to see if one is in there.

The joint exhibit list submitted in October 2025 needs to be reviewed as well and disputes about exhibits need to be resolved.

Finally, the Court will inquire of counsel regarding whether and to what extent the partition sale of the Vista Property will be presented to the jury at trial.

At this juncture, it appears to the Court that perhaps a jury pool can be ordered for Wednesday July 22.